

## 26NNCV01400 26NNCV01400

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Case Number: 26NNCV01400 Hearing Date: July 17, 2026 Dept: A

### TENTATIVE RULING

JULY 17, 2026

MOTION FOR PRELIMINARY

INJUNCTION

Los

Angeles Superior Court Case # 26NNCV01400

MP: Plaintiff

13 Splinters dba Stellar Custom Wood

RP: Defendant

Alex Mendelis

### NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at [email protected] or by telephone at (818) 260-8412.

#### ALLEGATIONS:

13 Splinters dba

Stellar Custom Wood ("Plaintiff") allege that

in September 2020, Alex Mendelis

("Defendant") sold all assets of AVM Woodworking, Inc. ("AVM"), including its

goodwill, customer relationships, subcontractor network, confidential

information, and reputation in the Los Angeles cabinetry market to Plaintiff's

predecessors, Enno and Adrienne Roellgen ("Buyers"). (Compl., ¶¶12, 16-17.) As part of the sale, they entered into an

Asset Purchase Agreement ("APA"), which included a noncompetition and

non-solicitation covenant that the sellers and their affiliates would not

directly or indirectly carry-on similar business within 100 miles of the

present location of the business ("Covenant"), which applied through September

2030. (Id., ¶¶20, 22.) The APA allocated \$150,000 of the purchase

price specifically as consideration for the Covenant and Defendant was also

paid a separate \$550,000 consideration for goodwill. (Id., ¶¶3, 21.) Following closing, the Buyers continued

operating the business and Plaintiff subsequently took over operations as the

APA's successor-in-interest. (Id.,

¶¶24-25.)

Plaintiff contends

that after Mr. Roellgen died on May 13, 2023, Defendant reentered the business

under the guise of assisting in operations and continuity, gained access to

Plaintiff's pricing models, bidding strategies, and confidential information,

and influenced pricing and bidding decisions, resulting in overpriced bids so

that Plaintiff lost projects and its reputation was harmed. (Id., ¶¶27-29.) Plaintiff paid Defendant approximately

\$77,780.21 during the transitional period.

(Id., ¶30.)

After concluding his

transactional involvement, Defendant began competing in the same cabinetry

market in violation of the Covenant, such as by acting as a

partner/consultant/facilitatory for a competing cabinet shop within the

restricted radius. (Id., ¶¶33-34.)

Plaintiff alleges Defendant solicited Plaintiffs' employees and

subcontractors, interfered with Plaintiff's customer relationships, and caused

substantial damage to its goodwill and revenue.

(Id., ¶¶36-42.)

The Complaint,

filed February 26, 2026, alleges causes of action for: (1) Breach of Contract; (2) Breach of Covenant Not to Compete; (3) Breach of Non-Solicitation Covenant; (4) Breach of Implied Covenant of Good Faith and Fair Dealing; (5) Intentional Interference with Contractual Relations; (6) Intentional Interference with Prospective Economic Advantage; (7) Unfair Competition; and (8) Declaratory and Injunctive Relief.

#### MOTION ON CALENDAR:

On April 13, 2026, Plaintiff  
filed a Motion for Preliminary Injunction.

On July 6, 2026, Defendant filed  
an opposition. On July 10, 2026, Plaintiff  
filed a reply.

#### LEGAL STANDARD:

“The function of  
a preliminary injunction is the preservation of the status quo until a final  
determination of the merits.” (Beehan  
v. Lido Isle Community Assn. (1977) 70 Cal.App.3d 858, 866.). Therefore, a preliminary injunctions may be granted only after  
the moving  
party shows there is no adequate remedy at law. (Wilkison v. Wiederkehr  
(2002) 101 Cal.App.4th 822, 832-833; C.C.P. § 526(a)(4).) “The rule in this  
state is that injunctive and declaratory relief will not be granted where there  
is a plain, complete, speedy, and adequate remedy at law.” (Rickley v.  
County of Los Angeles (2004) 114 Cal.App.4th 1002, 1013 [internal  
quotations and citations omitted].)

“The  
trial court’s decision rests on the consideration of two interrelated factors:  
(1) the likelihood that [moving party] will prevail on the merits at trial and  
(2) the interim harm that [moving party] is likely to suffer if the injunction  
is denied, compared to the harm the [opposing party] is likely to suffer if the  
injunction issues.” (Perez v. Hastings College of the Law (1996) 45  
Cal.App.4th 453, 456 [citing Cohen v. Board of Supervisors (1985) 40  
Cal.3d 277, 286].) These factors are applied on an inverse sliding scale: the  
greater the likelihood of success on the merits, the less that must be shown

for interim harm, and vice versa. (Butt v. State of California (1992) 4 Cal.4th 668, 678.)

The burden of proof is on the plaintiff as the moving party “to show all elements necessary to support issuance of a preliminary injunction.” (O’Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481.) Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See, e.g., Ancora-Citronelle Corp. v. Green (1974) 41 Cal.App.3d 146, 150.) Injunctive relief may be granted based upon a verified complaint only if it contains sufficient evidentiary as opposed to ultimate facts. (CCP § 527(a).)

A trial court has broad discretionary powers to grant or deny a request for a preliminary injunction so long as it does not act capriciously. The court should exercise its judgment in favor of the party most likely to be injured. (Robbins v. Superior Court (1985) 38 Cal.3d 199, 205.) If the denial of an injunction would result in great harm to the plaintiff, and the defendant would suffer little harm if it were granted, then it is an abuse of discretion to fail to grant the preliminary injunction. (Id.)

#### EVIDENTIARY OBJECTIONS:

With the opposition, Defendant submitted the following evidentiary objections to Plaintiff’s evidence.

The Court rules as follows:

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Adrienne Roellgen’s Declaration: Objection Nos. 2, 3-5, 7-19 are overruled. Objection Nos. 1 and 6 to portions of paragraphs 33 and 50 are sustained.

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Carlos Quintanilla’s Declaration: Objection Nos. 1-2 are overruled.

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Jesus Magana's Declaration: Objection Nos. 1, 2, 4, and 5 to paragraphs 4 and 7 are overruled.  
Objection Nos. 3 is sustained.

#### ANALYSIS:

Plaintiff seeks a preliminary injunction restraining Defendant and all persons acting in concert with him, to be restrained and enjoined, pending final judgment, from directly or indirectly:

1. Carrying on or assisting any person or entity in carrying on a business similar to the custom cabinetry and millwork business formerly operated as AVM Woodworking, Inc. ("AVM") within 100 miles of AVM's former business location;
2. Soliciting or hiring any employees or subcontractors who worked for AVM as of the date of sale or for Plaintiff after succession;
3. Soliciting or selling to any customers of AVM as of the date of sale or to any customers of Plaintiff after succession; and
4. Interfering with Plaintiff's goodwill, business relations, economic expectancies, workforce, subcontractor network, or marketplace position during the term of the noncompetition covenant (the "Covenant"), which extends through September 2030.

A.

Probability  
of Success on the Merits

The elements for breach of contract are:

"(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Business &

Professions Code, § 16601 states in relevant part:

any person who sells the goodwill of a business, or any owner of a business entity selling or otherwise disposing of all of his or her ownership interest in the business entity, or any owner of a business entity that sells (a) all or substantially all of its operating assets together with the goodwill of the business entity, (b) all or substantially all of the operating assets of a division or a subsidiary of the business entity together with the goodwill of that division or subsidiary, or (c) all of the ownership interest of any subsidiary, may agree with the buyer to refrain from carrying on a similar business within a specified geographic area in which the business so sold, or that of the business entity, division, or subsidiary has been carried on, so long as the buyer, or any person deriving title to the goodwill or ownership interest from the buyer, carries on a like business therein.

In Alliant Ins.

Services, Inc. v. Gaddy (2008) 159 Cal.App.4th 1292, the defendant agreed to a noncompetition covenant, which expressly defined the restricted territory as to 58 counties in the State of California.

The Court of Appeal did find this noncompetition covenant valid, reasoning:

Thus, California's public policy affirms a person's right to pursue the lawful occupation of his or her choice. [...] An exception exists for a noncompetition covenant in connection with the sale of a business, pursuant to section 16601 [...].

The reason for this exception to the general rule against noncompetition covenants is to prevent the seller from depriving the buyer of the full value of its acquisition, including the sold company's goodwill. [Citation.] “It was the policy of the [common] law, within reasonable limits, to protect the purchaser in the enjoyment of the good will which he had purchased and paid for.” [Citation.] The sold business's goodwill is the “ ‘ ‘expectation of ... that patronage which has become an asset of the business.’ ” [Citation.] The geographic scope of a noncompetition covenant must be limited to the area where the sold company carried on business because “[o]therwise, a seller could be barred from engaging in its business in places where it poses little threat of undercutting the company it sold to the buyer.” [Citation.]

(Alliant Ins.

Services, Inc. v. Gaddy (2008) 159 Cal.App.4th 1292, 1300–1301 [internal quotation marks and citations omitted].)

With respect to the non-solicitation covenant, the Court of Appeal stated that the covenant is permissible if it prohibits the seller from soliciting the seller's clients but is not permissible if it prohibits the seller from soliciting the buyer's clients because: (1) the rationale for enforcing non-solicitation covenants—i.e., they prevent the seller from depriving the buyer of the full value of its acquisition, including the sold company's goodwill—does not extend to the buyer's other customers; and (2) the seller presumably knows who its own clients are but does not necessarily know who the buyer's other clients are. (Id. at 1306; see also *Strategix, Ltd. v. Infocrossing West, Inc.* (2006) 142 Cal.App.4th 1068, 1073 [“On the other hand, nonsolicitation covenants barring the seller from soliciting all employees and customers of the buyer, even those who were not former employees or customers of the sold business, extend their anticompetitive reach beyond ‘the business so sold.’ (§ 16601.) They do more than ensure the buyer receives the full value of the business it bought, whose goodwill does not include ‘the patronage of the general public.’”].)

Plaintiff argues that it can show the probability of success on the merits because Plaintiff's predecessors, the Buyers, entered into the APA with Defendant, which included section 19:

COVENANT NOT TO COMPETE: Seller [Alex Mendelis] and Seller's spouse, and their respective Affiliates, individually, shall not directly or indirectly carry on a similar business [X] within a radius of 100 miles of the present location of the Business [AVM] ..., solicit or hire any current employees of the Business, solicit or sell to any current customers of the Business or assist anyone else except the Buyer [Enno Roellgen and Adrienne Roellgen] to do so within these limits, or have any interest, directly or indirectly, in such business, except as an employee of the Buyer, for a period of 10 consecutive years from Closing. This covenant shall become an asset of the Business and may be transferred as part of any future transfer of the Business.

(Adrienne Roellgen Decl., Ex. 1 [APA, §19].) On March 9, 2021, Plaintiff filed a Fictitious Business Name Statement stating that it was doing business as AVM Woodworking, Inc. and/or AVM Woodworking. (Id., Ex. 2.) Plaintiff argues that despite the Covenant, Defendant breached the agreement by competing and assisting competitors, soliciting employees and subcontractors, interfering with customers, and misusing

confidential information.

Plaintiff provides

Adrienne Roellgen's declaration in support of the motion. Ms. Roellgen states that after her husband's death, Defendant temporarily worked inside her business to help with the transition and was paid \$77,780.21 for his work. (Roellgen Decl., ¶¶23, 26.) She states that Defendant influenced pricing and bidding decisions, made costly errors on projects resulting in financial loss, and steered/diverted work to other cabinet shops for his own benefit. (Id., ¶¶24-29.) As part of the sale of the business to

Plaintiff, a \$130,000 promissory note was executed with a maturity date of September 18, 2030. (Id.,

¶30.) Following the early payoff of the

SBA loan, Defendant asserted the note became immediately due and filed a lawsuit, which was resolved by written Settlement Agreement in April 2025 wherein she paid Defendant \$95,000 plus \$1,625.01 interest for full resolution of the note. (Id., ¶¶31-32, Ex.

3.) She states that pursuant to the

Settlement Agreement, Defendant agreed to continue forwarding work to her, but he only forwarded a small project for a single vanity while retaining larger, high value projects for himself. (Id.,

¶¶34-35, Ex. 4.)

Ms. Roellgen states

that since that time, she believes Defendant has been actively competing against her business. (Id.,

¶38.) She states that emails from Julian

Sahagun of Lioher Pacific, LLC (a competing cabinetry company) to Defendant's former business email address identified Defendant as its "partner," and that Defendant was actively participating in the same type of work and servicing the same customer base that was part of the goodwill she purchased. (Id.,

¶¶39-42, Ex. 5 [Dec. 2025 Emails].) She

also provides Defendant's CSLB listing showing that he is still licensed for cabinet, millwork, and finish carpentry and continues to do business under AVM's name; he is listed in the Franklin Report (a contractors' database) with AVM as manufacturers of custom, cabinetry, and millwork in the West L.A., Santa Monica, and Encino areas; and continues to have other cabinetry business advertisement. (Id., ¶¶43-46, 54-56;

Ex. 6 [CSLB License # 400500 for AVM, stating that Defendant certified he owns 10% or more stock in the company], Ex. 7 [AVM's Franklin Report indicating Defendant as owner]; Exs. 9-11.) She

also believes that Defendant stole or obtained a copy of her Cabinet Vision key (a software platform used by cabinetmakers, millwork shops, and woodworking manufacturers) because she declined his request to let him use her Cabinet Vision key; after July 15, 2025, her key went missing but was still active; and Cabinet Vision sent Defendant an invoice to Defendant's email on January 27, 2026. (Id., ¶¶49-52, Ex. 8.)

With respect to

employee solicitation, Plaintiff provides Carlos Quintanilla and Jesus Magana's declarations, Plaintiff's cabinet maker employees. Mr. Quintanilla states that over the past two years, Defendant came to the shop many times to ask questions about the work they were doing and if they were working overtime. (Quintanilla Decl. at 1:19-21.) He states that he was contacted by Julian Sahagun and offered work but declined the offer. (Id. at 1:22-23.) He states that in November 2025, Defendant called him many times but he did not answer. (Id. at 1:24-25.)

Mr. Magana states that over the past two and a half years, Defendant asked him and other employees many questions about work, what they were doing, who they were working for, and what jobs they were working on. (Magana Decl., ¶2.) Mr. Magana states that in October 2025, Defendant came to the shop and asked if he had work and was working overtime, and then Julian Sahagun called and offered him work. (Id., ¶¶3-4.) He states Defendant, on one occasion, instructed him to hang his old signs on the building, as well as other maintenance related work, but he refused. (Id., ¶7.)

With respect to interference, Ms.

Roellgen states that her business built cabinetry for Jeff Lewis under a contract entered before Mr. Roellgen's death, but the project was delayed due to unrelated issues on the client's end. (Roellgen Decl., ¶¶65-67.) When the project resumed, she agreed to lower Jeff Lewis's prices and his team agreed to pay 100% upon delivery (as opposed to completion) but when the work was nearly complete, payment was withheld because she was told that another cabinetry company would finish the job and she would not be permitted to return to the site. (Id., ¶¶68-70.) Lewis's team included Tyler Myerkorth, who was referenced in the email attached to Exhibit 5 connecting Defendant to Lewis. (Id., ¶73)

Ms. Roellgen also

states that JAG Construction used to be her largest client but, after following

Defendant's bidding advice, she stopped winning JAG contracts. (Id., ¶¶74-75.) For example, she states that on the Marguerita Project, Defendant advised and she issued a changer order to increase the contract price by \$56,000, which JAG rejected, such that she lost the bid. (Id., ¶77.) She states that after this incident, her relationship with JAG changed and she thereafter learned that Defendant actively worked with and assisted other cabinetry companies. (Id., ¶¶78-79.)

In opposition,

Defendant argues that Plaintiff has not established its burden because its theory depends on speculation instead of competent evidence and Plaintiff's evidence is contradicted by sworn testimony. In his declaration, Defendant states that when he entered the APA in 2020, he was 73 years old and sold the business for health reasons with the intention to retire. (Def. Decl., ¶¶6-7.) He states that since the sale, he retired from the cabinetry and woodworking industry and has no interest or intent to return to or operate a cabinetry business.

(Id., ¶¶8-10.) He states

after Mr. Roellgen's passing, he temporarily assisted Ms. Roellgen and the business for a limited period but did not intend to return to the business. (Id., ¶¶11-12.) He states that during the temporary transitional period, he never assumed responsibility, control, or influence over Plaintiff's business, pricing, or bidding; and never diverted Plaintiff's work to other shops for his benefit, never told customers not to use Plaintiff, etc. (Id., ¶¶16-35.) He states that he never solicited Plaintiff's employees, asked them to leave, or offered them employment; he never asked Mr. Sahagun to contact or offer employment to Plaintiff's employees; never asked others to take work away from Plaintiff; never treated Plaintiff's employees as his employees; and did not benefit from any temporary work that Mr. Magana may have performed for Lioher. (Id., ¶¶36-62.)

Defendant further states

that he had no partnership with Lioher and was never Mr. Sahagun's business partner and that he never diverted or solicited Mr. Lewis, Mr. Meyerkorth, or JAG not to use Plaintiff. (Id.,

¶¶63-98.) He states that he never stole,

took, copied, or used Plaintiff's Cabinet Vision key, nor has he stolen, retained, or misused Plaintiff's confidential information. (Id., ¶¶99-111.) Defendant states that he never used any former AVM-related email account to secretly divert Plaintiff's customers or business opportunities, he never used the accounts to misrepresent himself or obtain Plaintiff's confidential information, etc.; he also points out that

Plaintiff acknowledges it had access to these accounts and was able to monitor Defendant's email. (Id.,

¶¶112-127.) Since retirement, Defendant

has not employed anyone, operated a competing shop, or used Plaintiff's labor force, customer list, subcontractor list, pricing/bidding information, or trade secrets. (Id., ¶¶128-135.) He denies that he caused Plaintiff's revenue decline or business difficulties. (Id.,

¶¶136-145.) Finally, he states that he

never interfered with Plaintiff's contracts or prospective economic relationships; never solicited Plaintiff's employees, customers, and subcontractors; never diverted Plaintiff's work; never stole Plaintiff's software key; never misused Plaintiff's confidential information; never accessed Plaintiff's private files; never used Plaintiff's goodwill to compete; and never assisted Mr. Sahagun or any other person in violating Plaintiff's rights. (Id., ¶¶146-157.)

David Neiyer,

Defendant's accountant/bookkeeper/tax preparer, has provided Defendant services since 2017 and states that he has not seen any income, payments, deposits, etc.

showing Defendant received payment for cabinetry work after he sold his

business. (Neiyer Decl., ¶¶2, 5.) He has not seen records showing Defendant

operated or received income for a cabinetry business after he sold his company,

or that Defendant received payment from JAG, Jeff Lewis, Tyler Myerkorth/Meyercourth,

Sim Club or any related project, or Lioher. (Id., ¶¶6-10, 18.) Based on his review of Defendant's financial

and accounting records, he has no records that Defendant had any ownership

distributions, partner draws, income, etc. from Lioher; that he had any

employees, payroll, subcontractor payments, etc.; that he received income from

Plaintiff's customers, subcontractors, or employees; received money diverted

from Plaintiff's cabinetry work; or any records reflecting that he actively

operated a competing business. (Id.,

¶¶11-17.)

Jeffrey Thomas Lewis

states in his declaration that from 2018 to 2020, he contracted with Defendant

and/or AVM for cabinetry work and believed Defendant had retired from the

cabinetry business in 2020 after selling his business. (Lewis Decl., ¶¶3-5.) He states that since Defendant retired and

sold his business, he has not contacted Defendant for cabinetry work, Defendant

has not contacted him regarding cabinetry work, Defendant has not performed

cabinetry work for him since 2020, and since 2020 Defendant has not been

involved in any of his projects. (Id.,

¶¶6-9.) He states that Defendant did not solicit him to stop working with, to move away from, or not to use Plaintiff or Ms. Roellgen, nor did Defendant interfere with any relationship, communication, dispute, or issue between himself and Plaintiff or Ms. Roellgen. (Id., ¶¶10-13.) He states that any issue, dispute, or decision involving himself and Plaintiff or Ms. Roellgen did not involve Defendant; he did not authorize Defendant to act on his behalf in connection with any cabinetry project after he retired/sold the business; and he is not aware of any facts showing Defendant diverted, interfered with, or participated in any cabinetry project involving Lewis after Defendant retired and sold his business. (Id., ¶¶14, 17, 18.)

Julian Sahagun,  
Lioher Pacific, LLC's ("Lioher") owner/operator, addresses his relationship with Defendant, his limited use of Plaintiff's employee, and his communication with Tyler Meyercourth:

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Mr. Sahagun states that Defendant is not Lioher's owner, member, officer, manager, employee, agent, or business partner; Defendant has no ownership interest in Lioher; and Defendant does not control, direct sales activities, direct employees, or have authority to make decisions on Lioher's behalf. (Sahagun Decl., ¶¶4-6.) He only referred to Defendant as his "partner" in a casual/social sense since they play golf together, but Defendant is not his business/legal partner or Lioher's agent such that any implication that Defendant is his business partner in Lioher is incorrect. (Id., ¶¶7-8, 41.)

.  
Mr. Sahagun states he did not act under Defendant's direction when communicating with Plaintiff's employees, Defendant never provided him with employee/customer lists, Defendant never asked him to obtain confidential information from Plaintiff's employees, and Defendant never asked him to contact Plaintiff's employees for the purpose of causing them to leave. (Id., ¶¶9-13.) In October 2025, Mr. Sahagun's salesperson, Franco Jimenez, visited Stellar Woodworking to maintain business relationships (not at Defendant's direction) and Mr. Franco reported that a Stellar employee asked about available work, Mr. Sahagun told Mr. Franco not to

offer any work, and Mr. Franco again reported the same employee asking for work two weeks later. (Id., ¶¶14-19, 48.) Mr. Sahagun spoke with Jesus Magana directly (with no involvement from Defendant), had known Mr. Magana from prior years working with Defendant, and allowed him to perform limited part-time work for Lioher on four occasions in October and November 2025 after his regular workday. (Id., ¶¶20-25, 28-30, 47, 49; Ex. A [Check].) Mr. Sahagun states that Mr. Magana did not perform well so he did not continue using him, and he did not ask Mr. Magana to quit his job, did not offer him permanent or full-time employment, did not ask him to bring any coworkers, and did not ask for confidential information. (Id., ¶¶26-27.)

.  
In December 2025, Tyler Meyercourth contacted Mr. Sahagun regarding Lioher's Artika collection and asked for input regarding the use of panels for an indoor golf/simulator club project and, because he played golf socially with Defendant, he invited Defendant to look at the indoor golf concept from a social/golf perspective. (Id., ¶¶32-35.) He understood that Mr. Meyercourth sent certain plans/information to Defendant because he had asked Mr. Meyercourth to involve Defendant in their discussion, but Defendant was not involved as Lioher's contractor, cabinetmaker, installer, or business partner; Defendant did not request that information to compete, divert work away from, or interfere with Plaintiff; and Defendant did not use the plans to perform cabinetry work. (Id., ¶¶36-39.) Mr. Sahagun's communications with Mr. Meyercourth were based on Lioher's products and his own interest/knowledge regarding golf and were not intended to divert business from Plaintiff and were not directed by Defendant. (Id., ¶50.)

.  
He states that he did not conspire with Defendant to divert any customer, project, or opportunity from Plaintiff; he did not request or receive any customer list, project list, drawings, confidential plans, pricing, bid information, trade secrets, or proprietary information from Defendant that belonged to Plaintiff; and he did not use any information from Defendant to solicit Plaintiff's customers, employees, subcontractors, or projects. (Id.,

¶¶42-44.)

Mr. Meyercourth

states that he knew Defendant since 2018 and that the last cabinetry project he worked on with Defendant was in May/June 2023 under contract with

Plaintiff. (Meyercourth Decl., ¶¶3,

5-8.) He states after that project, he

did not work with Defendant and Defendant did not solicit him to stop working with Plaintiff or solicit projects. (Id.,

¶¶9-13.) He states that he needed wall

paneling for one of his jobs and found Mr. Sahagun/Lioher and later learned

that Mr. Sahagun and Defendant were friends; Defendant learned about the Sim

Club golf project from Mr. Sahagun; and he emailed his renderings to Defendant

for personal interest and did not hire him for cabinetry work for Sim Club. (Id., ¶¶14-18, 20-22.) He states that Defendant did not try to

compete with Plaintiff, did not use Mr. Meyercourth to divert work away from

Plaintiff, and did not interfere with Plaintiff's relationships with Mr.

Meyercourth. (Id., ¶¶23-26.)

John Andrews, JAG's

principal, states JAG used Defendant and/or his company for projects before he

sold his cabinetry business, but did not continue commissioning or retaining

Defendant after he sold the business. (Andrews

Decl., ¶¶4-9.) Mr. Andrews states that

Defendant has not solicited JAG, has not asked JAG to stop working with

Plaintiff, has not attempted to divert JAG's work away from Plaintiff, has not

bid on JAG's projects, and has not performed cabinetry work for JAG. (Id., ¶¶10-15.) He states that

JAG has not worked with Defendant on cabinetry since he sold his business and

has no current business relationship with Defendant. (Id., ¶¶17-18.) He states that Defendant did not cause JAG to

award cabinetry work to other persons/company's than Plaintiff, Defendant did

not interfere with JAG's relationship with Plaintiff and JAG's decision to

use/not use Plaintiff was not caused by Defendant. (Id., ¶¶19-21.)

Based on Ms.

Roellgen's declaration, the Court finds that there may be suspicions or

correlations between Plaintiff's decline in business after Mr. Roellgen passed

away and/or Defendant helped in the transition period, but Plaintiff has not

shown the likelihood of prevailing at this stage. Plaintiff has not shown that Defendant

breached the Covenant or that Defendant actually participated in a competing

cabinetry business. For example, while

she states that Defendant still held himself out with the CSLB and other websites that he owned AVM (now renamed) or performed cabinetry services, she has not shown proof that he in fact continued to conduct such services after he sold his business. (If anything, it may be that he did not update websites with his business sale or retirement information.) Furthermore, while she “believes” Defendant has been actively competing, she has not shown definitive proof—at most, the evidence provided is speculative and requires inferential leaps.

Next, Mr. Sahagun

states that he—not Defendant nor upon Defendant’s urging—contacted Mr. Magana after Mr. Magana sought work with Lioher.

Based on Mr. Sahagun and Defendant’s sworn testimony, Defendant did not solicit employees from Plaintiff and Mr. Sahagun’s use of Mr. Magana four times on a part-time basis will not be imputed to Defendant’s purported solicitation of employees without more.

The declarations of

Mr. Lewis, Mr. Sahagun, and Mr. Meyercourth also show that Defendant did not solicit their business nor interfere/compete with Plaintiff’s business. Ms. Roellgen states that she saw declines in business after Defendant’s transitional/temporary work with Plaintiff, but the Court does not find that these conjectures of conclusory statements of belief are sufficient to establish the probability of success on the merits of Plaintiff’s claims. To the extent that Plaintiff contends Defendant indirectly affected the business relationships, here, without more, the Court cannot make such a finding at this time. Mr.

Andrews’ declaration confirms that Defendant did not engage in any cabinetry business since selling AVM.

Finally, Ms. Roellgen

states that she has “reason to believe” Defendant stole her Cabinet Vision key because he had asked for it (at an unspecified time) and based on a January 27, 2026 email from Cabinet Vision to Defendant requesting his payment for annual software support. (Roellgen Decl.,

¶52.) She stated that all emails from the past five years had been sent to her and there is no reason the 2026 email was sent to Defendant. (Id.,

¶53.) However, this email will not in itself be proof that he stole, had access to, and/or misused Plaintiff’s key.

The Court finds that

Plaintiff has not established its initial burden in showing the likelihood of prevailing on the merits of its claims based solely on the evidence presented in connection with this application for a preliminary injunction. While Plaintiff has presented declaration testimony about suspicions that Defendant engaged in a competing cabinetry business or that he solicited employees, the evidence is tenuous and speculative. Rather, in opposition, Defendants provides affirmative declaration statements from the various individuals and project-holders that address Plaintiff's contentions, showing that Defendant did not directly or indirectly compete with Plaintiff or solicit Plaintiff's customers, business opportunities, employees, subcontractors, etc.

Thus, the motion for preliminary injunction is denied.

B.

Balance of Harms

Before a court

will grant a preliminary injunction, the moving party must establish at least some probability of success on the merits.

(Butt v. State of California

(1992) 4 Cal.4th 668, 678.) "If a moving

party is able to make such a showing, a court will then "examin[e] all of the material before it in order to consider 'whether a greater injury will result to the defendant from granting the injunction than to the plaintiff from refusing it, ....' [Citations.]" (Take

Me Home Rescue v. Luri (2012) 208 Cal.App.4th 1342, 1353.)

"An injunction cannot issue in a

vacuum based on the proponents' fears about something that may happen in the future. It must be supported by actual evidence that there is a realistic

prospect that the party enjoined intends to engage in the prohibited activity." (Korean

Philadelphia Presbyterian Church v. California Presbytery (2000) 77 Cal.App.4th 1069, 1084.) Thus, the threat of "irreparable harm" must

be imminent, as opposed to a mere possibility of harm sometime in the future. (Rutter Guide, Cal. Prac. Guide

Civ. Pro. Before Trial (June 2018 Update) Ch. 9(II)-A, §9:508.)

As discussed

above, the Court finds that Plaintiff has not established the probability of success on the merits, such that the Court need not discuss the balance of harms.

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RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff 13

Splinters dba Stellar Custom Wood's Motion for Preliminary Injunction came on regularly for hearing on July 17, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

MOTION FOR PRELIMINARY INJUNCTION IS DENIED WITHOUT PREJUDICE.

DEFENDANT

TO GIVE NOTICE.

IT IS SO ORDERED.